

Council Meeting
May 22, 2024
Page 1

The Claremont City Council held a meeting on Wednesday, May 22, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:00 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne - Entered at 6:03 p.m.

Ward II Councilor Brian Zutter

Ward III Councilor Jonathan Hayden

Assistant Mayor Debora Matteau

At-Large Councilor Wayne Hemingway

At-Large Councilor William Limoges

At-Large Councilor Nicholas Koloski

Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

NON-PUBLIC RSA 91-A3, II(d)

Members Present

Councilor Koloski

Councilor Limoges

Assistant Mayor Matteau

Councilor Zutter

Councilor Hemingway

Councilor Hayden

Mayor Girard

Motion by Assistant Mayor Matteau to enter Non-Public under RSA 91-A:3, II (a) and seconded by Councilor Hemingway.

Roll call:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

Girard – yes

Motion carried 7-0

Non-members invited to attend non-public session

Yoshi Manale and Nancy Merrill

Entered nonpublic session at 6:02 p.m.

Councilor O’Hearne entered non-public at 6:03 PM

Description of matters discussed:

131 Main Street re: deed restrictions for no housing, buyer wants to put four residential units in. Discussion of process going forward on future requests.

Motion to leave non-public and return to public session by Councilor Limoges and seconded by Councilor O’Hearne.

Roll call:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne - yes

Girard – yes

Motion carried 8-0

Motion to adjourn by Councilor Limoges and seconded by Councilor O’Hearne.

Roll call:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne - yes

Girard – yes

Motion carried 8-0

These minutes recorded by: Assistant Mayor Matteau

AGENDA CHANGES

Manager Manale requested to remove item C, Ordinance 625.

REPORT OF THE SECRETARY

A motion was made by Assistant Mayor Matteau and seconded by Councilor Limoges to accept the minutes of the May 8, 2024, City Council meeting.

Voice vote :

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

MAYOR’S NOTES

Monday, May 27th is the Memorial Day Parade, starting at the middle School.

June 1st the West Center for Arts will be holding a ribbon cutting ceremony Saturday evening.

June 8th starting at 10:30 a.m. is the Stevens High School Alumni Parade.

Mayor Girard Read a proclamation for Stevens High School Alumni.

Mayor Girard received an email from Councilor Tremblay, and read the resignation email.

A Motion to accept Councilor Tremblay’s resignation effective at the end of this meeting was made by Assistant Mayor Matteau and seconded by Councilor Hemingway.

Voice vote:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

CITY MANAGER'S REPORT

Manager Manale held remarks due to the long meeting ahead.

CITIZEN'S FORUM

Mayor Girard gave reminder to those that are speaking on non-agenda items to state their name, and ward and have five minutes each.

Mike Tetu, Ward 1, Wants a letter from the City Clerk referencing RSA 669:1 elections state and federal, and noted the general public would like to see this letter. Mr. Tetu asked for the charter amendment matter be moved to vote in 2024, and asked to be placed on the agenda.

Elizabeth Cramm, Ward 1, shared concerns for an active shooter, and would like to know the plan for the Council Chambers on where to go.

Mr. Davis, Ward 1, Shared concern for Sugar River Drive road conditions, and noted it was a safety hazard and would like an update. Mayor Girard Suggested going to a Police Commission meeting.

Norm Blouin, Ward 3, has concerns for the budget being "rubber stamped" Concerns for lack of businesses, and bad roads. Mr. Blouin stated this town is stagnant.

OLD BUSINESS

2025-2030 CIP

Director Merrill noted the Planning Board accepted additional projects into the CIP since March including the Police communication center, as well as North and Main.

Motion to Accept Capital Improvement Plan 2025-2030

WHEREAS the Claremont Planning Board, pursuant to RSA 674:7, has prepared and approved a Capital Improvement Plan for fiscal years 2025-2030, and now desires to submit its recommendations to the Mayor and City Council for consideration as part of the Council's annual

budget review process, the Claremont City Council hereby accepts the fiscal year 2025-2030 Capital Improvement Plan as approved on May 13, 2024 by the Claremont Planning Board. The Claremont City Council hereby authorizes the City Manager or his designees to incorporate the recommendations contained in the fiscal year 2025-2030 Capital Improvement Plan into the annual budget review process and authorizes the Claremont Planning Board to provide updates to the Capital Improvement Plan on an annual basis to maintain and improve the City's credit rating and fiscal health.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to accept the Capital Improvement plan 2025.

Roll call:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

Ordinance 624 Taxi's – *First Reading*

Manager Manale brought this Ordinance to the Council for better enforcement of taxi cab licensing, and noted The Police department agreed with the numbers.

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY FOUR

ORDINANCE #624

The City of Claremont Ordains:

Section 1. Taxicab Licensing

Amend City Code Chapter 21, Article II, Division 2, to add Sec. 21-48 as follows:

DIVISION 2. - LICENSES

Sec. 21-41. - Required.

No person shall operate, or cause to be operated, a taxicab within the city unless licensed as herein provided. The city manager is authorized to approve taxicab licenses in accordance with the provisions of this division. The taxicab license shall be issued by the city clerk upon approval of an application by the city manager and the applicant paying the fee prescribed by the city's current license, permit and service fee schedule.

(Ord. No. 295, § 1, 11-9-88)

Sec. 21-42. - Applications.

Application for a taxicab license shall be made on forms provided by the city, and shall set forth the name and address of the applicant, the trade name under which the applicant does or proposes to do business, where proposed stands and garages are to be located, the number of vehicles the applicant desires to operate with a clear description of each vehicle, and such other facts as the city manager may require.

(Ord. No. 200, § 3, 7-9-80)

Sec. 21-43. - Financial responsibility.

It shall be unlawful to operate a taxicab for hire or permit the same to be operated, nor shall any license be issued under this division, until and unless the applicant for license deposits with the city manager a policy or certificate of liability insurance for each taxicab for which a license is sought, such policy or certificate of liability insurance to be acceptable and approved by the city solicitor and issued by a company authorized to do business in the state indemnifying the applicant in the sum of at least twenty thousand dollars (\$20,000.00) for injury to one (1) person or forty thousand dollars (\$40,000.00) for injury to more than one (1) person and five thousand dollars (\$5,000.00) property damage in any one (1) accident, through or by the operation of the taxicab of the applicant; or deposits in lieu thereof the bond of a surety company authorized to do business in the state running to the city and indemnifying persons who may be injured, or whose property may be damaged by the operation of such taxicab in the same amounts and conditioned that action may be brought thereon by any person so damaged against such surety company for the amount of such damage up to the amount named therein, such bond to be approved by the city solicitor. The policy of insurance or bond so deposited shall contain a clause obligating the company issuing the same to give ten (10) days' written notice before cancellation thereof to the city clerk. The license for the operation of such taxicab shall automatically expire upon the lapse or termination of such policy or bond.

(Ord. No. 200, § 4, 7-9-80)

Sec. 21-44. - Expiration.

Expiration of taxicab licenses issued under this division shall be on April 30.

(Ord. No. 200, § 5, 7-9-80)

Sec. 21-45. - Not transferrable.

No license for the operation of a taxicab shall be sold, transferred, or assigned. No license granted under this division shall apply to any taxicab except the particular one designated therein, by motor number, serial number or other identification.

(Ord. No. 200, § 6, 7-9-80)

Sec. 21-46. - Markings.

Every taxicab licensed under this division shall be conspicuously marked as a public taxicab and the license issued with respect to each taxicab shall be conspicuously posted therein and rates established by each taxicab company shall be conspicuously posted in each taxicab.

(Ord. No. 200, § 7, 7-9-80)

Sec. 21-47. - Suspension and revocation.

(a)The city manager is authorized to revoke any taxicab license if, after notice and hearing, he finds:(1)The person holding such license, or any principal owner, officer or manager of the firm or corporation holding the license, or the corporation holding the license, is convicted of any felony, any crime involving actual or threatened bodily harm, any sexual offense, substance abuse or a violation of this article.(2)One (1) or more drivers of taxicabs under that license are convicted of a series of traffic violations which make it reasonably probable that the holder of the license is not exercising the supervision necessary to protect the safety of persons hiring taxicabs operated under that license.(3)The applicant for the taxicab license has furnished false information to any city official or employee in the application for that license or pertaining to the drivers or operation of taxicabs under that license.(b)The city manager is also authorized to suspend, for not more than five (5) days, any taxicab license, if he has probable cause to believe that there are grounds to revoke the license.

Sec. 21-48

A. The violation of any provision of this chapter shall be punished by a fine not to exceed \$100 per day, or the revocation of the taxicab vehicle license, taxicab driver's license, or a combination of any of the three.

B. Each act of violation and every day upon which any such violation shall occur shall constitute a separate offense. The City may enjoin or abate any violation of this chapter by appropriate action. In addition to the penalty set forth in this chapter, if the court finds for the City, the City shall recover its costs of suit including reasonable experts' fees, attorneys fees, and necessary investigative costs.

C. Unlicensed Operation-

1. First Offense- The owner of the unlicensed vehicle shall be punished by a fine of \$100.00.

2. Second Offense- The owner of the unlicensed vehicle shall be punished by a fine of \$500.00.

3. Third Offense- The owner of the unlicensed vehicle shall be punished by a fine of \$1000.00. In addition, the Police Department shall, and is hereby authorized to, seize or immobilize any taxicab located within the City operating without a valid taxicab license for the third time. Upon such seizure or immobilization, the Police Department shall notify the owner of the vehicle of such seizure, the reason therefore, and of the place to which such vehicle has been removed or immobilized. The Police Department shall order the holding of any such vehicle for a period of not less than 10 business days from the date of the required notification to the owner. During this period, the owner may redeem any such vehicle by correcting the violation of this chapter which led to such seizure and paying all fines. Any taxicab which is impounded or immobilized and which is not redeemed within 30 days of the date of notification as described in this section shall become the property of the City. Cost for towing, storage charges, associated attorneys fees and accumulated fines will be billed to the owner of the taxicab seized and must be paid in full before the release of the vehicle to the owner who shall be responsible for removing the vehicle from storage. The City will be held harmless for any damage occurring during the act of confiscation, transportation, storage, and/or immobilization of each vehicle.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 21 of the City Code by action of the City Council prior to the adoption of this Ordinance are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause, or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Limoges and seconded by Assistant Mayor Matteau to accept Ordinance 624 to a second reading on June 12 City Council Meeting.

Councilor Limoges read the explanation of proposed action into the record.

Roll call:

Koloski – yes

Limoges - yes
Matteau – yes
Zutter – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0

NEW BUSINESS

131 Main Street, Deed Conditions

Director Merrill explained the City conveyed this property in late 90s to Alfred Johnson, Johnson Trust Attorney is interested in buying the property for apartments. The property has conditions, Director Merrill noted the building is old, someone should own and fix it up and recommends releasing the deed restrictions so the sale can move forward.

MOTION TO RELEASE DEED RESTRICTIONS

WHEREAS, The City of Claremont conveyed land and buildings located at 131 Main St., Claremont, NH to Alfred R. Johnson, Sr., Trustee of The Johnson Family Trust, by deed dated 2/25/1998 and recorded in Vol. 1143, Page 72 of the Sullivan County Registry of Deeds; and

WHEREAS, the deed at Vol. 1143 Page 72 contains the following restrictions:

“THIS CONVEYANCE IS MADE SUBJECT TO THE FOLLOWING RESTRICTIONS WHICH SHALL BE BINDING UPON THE GRANTEES, THEIR SUCCESSORS AND/OR ASSIGNS:

1. Only one (1) apartment having not more than three (3) bedrooms shall be allowed upstairs;
2. No new structures shall be built upon the property;
3. The property must be brought up to standards acceptable to the Historic District Commission within one (1) year from the date of transfer, failing which, title to the property shall revert to the City of Claremont.”; and

WHEREAS, The Claremont City Manager and the Claremont Planning and Development Department recommend that it is in the best interests of the City of Claremont that each of these restrictions be released and of no further force or effect. The property will remain subject to

compliance with all applicable zoning and building code requirements. It has been determined that restriction #3 was satisfied and the Historic District Commission issued a Certificate of Appropriateness for the property in December, 2000; and

The Claremont City Council hereby authorizes the City Manager, or his designees, to permanently release each of the above restrictions. Nothing herein shall affect any restrictions the City may hold as to other parcels. This release pertains to 131 Main St. only;

The Claremont City Council further authorizes the City Manager, or his designees, to undertake all actions and execute all documents as may be required to implement this resolution.

Dated this 22nd day of May 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to accept the Motion to release deed restrictions.

Roll call:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O’Hearne – yes

Girard – yes

Motion carried 8-0

Resolution 2024-38 Non-Capital Reserve for Code Enforcement – Public Hearing

Assistant Mayor Matteau had concern for the language at the end of resolution stating The City Manager has Authority.

Director Bates replied this was a continuation.

Councilor Koloski stated wanting to change the language.

Director Bates suggested the Council may want to retain for code enforcement because timing may be critical, but for capital expenditures can come back to council

By consensus City Council agrees to remove the language ‘and the City Manager or his designees are

named as agents to expend said funds.'.

RESOLUTION 2024-38

Modification of Existing Non-Capital Reserve Fund For Code Enforcement within the City of Claremont

BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, after public hearing, that

WHEREAS, the city established a Non-Capital Reserve Fund for Code Enforcement after proper notice and resolution vote by the City Council on March 28, 2018, Resolution 2018-22, and

WHEREAS, recovered prior year tax dollars from the sale of city-owned property, acquired through the tax-deeding process, is funding this reserve; and

WHEREAS, there have been no disbursements from the reserve since its inception, and where recovered tax revenue from the upcoming sale of tax deeded property will exceed the original cap set for said reserve;

NOW THEREFORE BE IT RESOLVED that, pursuant to RSA 34:11 and 34:1-a, the City of Claremont hereby modifies the purpose of the previously established reserve fund and it shall be known from this day forward as the Capital Reserve for Code Enforcement and Capital Improvements and its purpose shall be to cover costs of enforcing building and sanitary codes, the reduction of blight within the City of Claremont, and to support capital improvements;

BE IT FURTHER RESOLVED that the City Manager or his designees will cause the proceeds of any monies received from the sale of city-owned land and structures, including any recovered legal fees, taken by the tax-deeding process to be deposited into said expendable trust fund, with no accumulation cap, for the purpose of enforcing building and sanitary codes, the reduction of blight within the City of Claremont, and to support capital improvements, and the City Manager or his designees are named as agents to expend said funds. *(3/4 vote required)*

Dated this 22nd day of May 2024, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Hemingway and seconded by Assistant Mayor Matteau to accept resolution 2024-38.

Councilor Hemingway read explanation of proposed action into record.

Mayor Girard opened up a public hearing, no one spoke. Mayor Girard closed public Hearing

Roll call:

Koloski – yes
Limoges - yes
Matteau - yes
Zutter – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0

Council Rule Change; Rule 1 and Rule 12

A motion was made by Assistant Mayor Matteau and seconded by Councilor Zutter to accept Council Rule 1 Change.

Roll call:
Koloski – yes
Limoges - yes
Matteau - yes
Zutter – yes
Hemingway – yes
Hayden – yes
O’Hearne – yes
Girard – yes
Motion carried 8-0

Current Council Rule:

1. Regular council meetings.

The Council may meet in regular session on the second Wednesday of each month at 6:30 p.m. Workshop meetings will be held on an "as needed" basis. When Wednesday is a holiday the regular meeting shall be held on Thursday at the same hour unless otherwise provided for by motion. The Council may by motion dispense with any regular meeting. The place of the meeting shall be the City Council Chambers, unless otherwise designated.

Changes requested: (Red line out and Blue in)

1. Regular council meetings.

The Council may meet in regular session on the second ~~and fourth~~ Wednesdays of each month at 6:30 p.m. ~~Workshop meetings will be held on an "as needed" basis.~~ When Wednesday is a holiday, the regular meeting shall be held on Thursday at the same hour unless otherwise provided for by motion. The Council may by motion dispense with any regular meeting. The place of the meeting shall be the City Council Chambers, unless otherwise designated.

Council Rule as amended:

1. Regular council meetings.

The Council may meet in regular session on the second and fourth Wednesdays of each month at 6:30 p.m. When Wednesday is a holiday, the regular meeting shall be held on Thursday at the same hour unless otherwise provided for by motion. The Council may by motion dispense with any regular meeting. The place of the meeting shall be the City Council Chambers, unless otherwise designated.

Current Council Rule:

12. City solicitor.

Unless excused by the City Manager, the City Solicitor (if on staff) shall attend all meetings of the Council. Any member of the Council may at any time call upon the City Solicitor for an oral or written opinion to decide any question of law, but not decide upon any parliamentary rules.

Requested Changes: (Red remove – blue add)

12. City solicitor.

Unless excused by the City Manager, the City Solicitor (if on staff) shall attend all meetings of the Council. Any member of the Council may at any time call upon the City Solicitor, **if present**, for an oral or written opinion to decide any question of law, but not decide upon any parliamentary rules. **If the City Solicitor is contracted, they shall be present if requested by a simple majority of the council or if the City Manager deems appropriate.**

Rule as Amended:

12. City solicitor.

Unless excused by the City Manager, the City Solicitor (if on staff) shall attend all meetings of the Council. Any member of the Council may at any time call upon the City Solicitor, **if present**, for an oral or written opinion to decide any question of law, but not decide upon any parliamentary rules. **If the City Solicitor is contracted, they shall be present if requested by a simple majority of the council or if the City Manager deems appropriate.**

Mayor Girard explained the changes and read the new suggested Council Rule 12.

Councilor Koloski shared concern and curiosity for the language regarding parliamentary rules in Council Rule 12, and suggests this language shouldn't be in the rule in the event the body wants to ask something involving parliamentary rules.

Assistant Mayor Matteau stated not wanting to limit what the Council can ask the lawyer, and agrees with Councilor Koloski and thinks this language should be taken out.

Councilor O’Hearne explained it is not for an attorney to tell the Council how to do parliamentary rules, the Council is the governing body.

Councilor Koloski noted this would be the time to change the language.

Councilor Hemingway stated not knowing if striking this language is right.

Councilor Hayden stated advice is not a decision.

A motion was made by Assistant Mayor Matteau and seconded by Koloski to accept Council Rule Change 12 amended to striking the parliamentary language.

Roll call:

Koloski – yes

Limoges - no

Matteau – yes

Zutter – yes

Hemingway – no

Hayden – no

O’Hearne – no

Girard – yes

Motion carried 4-4

BUDGET

General Fund Revenue

Director Bates noted a couple of items to increase, such as state aeronautics, airport operations, registration fees, and airport hangar leases.

Councilor Koloski asked what is over/under in CSBCC Director Bates replied this is if you have a cash drawer that’s over under.

Mayor Girard asked if the City has heard from the state on rooms and meals tax, Director Bates replied, not yet.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Hayden to tentatively approve the General Fund Budget for \$ 6,823,251.00.

Roll call:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes
O’Hearne – no
Girard – yes
Motion carried 7-1

Water Fund Budget

Manager Manale noted Water and Sewer did have a mission statement and photos provided by the director but somehow did not make it into the Budget book.

Director Gleeson, Gave a PowerPoint presentation, read their mission statement, and highlighted operations and maintenance, water department staff, contracted services, administration, and Water Department Goals. Budget items noted were small tool replacement, gate valves, and hydrants.

Mayor Girard questioned the estimated revenue, Director Gleeson replied that there are two more bills not reflected.

Mayor Girard also shared concerns over regular pay, land M&R, sub-contracting and gate valves.

Mayor Girard noted there are too many questions that don’t add up to tentatively approve this budget in his opinion.

Councilor O’Hearne agrees, and wants to bring this back.

By consensus the City Council agrees to bring back Water Budget at the June 12th Council Meeting.

Sewer Fund Budget

Director Gleeson presented another PowerPoint for the Sewer Fund Budget, and highlighted: staff, contracted services, administration costs, and department goals. Items of note in budget were Electricity, Gravel and hot top, Pump station M&R, Machines & Equipment.

Councilor Koloski asked if there was a benefit to lease equipment instead.

Councilor Hayden would like to see cost comparison between purchase and leasing.

By consensus the City Council agrees to bring back Sewer Fund to another meeting.

Encumbrance Budget Resolution 2024-40 – Public Hearing

Manager Manale explained wanting to limit the Encumbrance Budget to items that the city was doing, or already in the works. Limited to mostly streets and roads and the Planning Department finishing up Capital Projects that are currently in the works that will expand beyond July first.

Director Bates stated this is very early in the process for encumbrances, but wanted to get a sense of what the City was looking at, and noted Sullivan Street Sidewalk will be eliminated for completion before the end of the fiscal year.

Councilor Koloski stated he did not think the Council would see an encumbrance budget tonight, and asked if it should be revisited.

Councilor O'Hearne stated not wanting to approve and suggested the Council should move on.

By Consensus the City Council agrees to bring back Encumbrances.

Mayor opened a public hearing.

Norm Blouin, Ward 3, shared concern for buying new equipment and wants to see lease options.

Mayor Girard closed the public hearing.

Capital Budget

Manager Manale explains the Capital budget includes two items, a splash pad and ADA bathrooms.

Mayor Girard shared concern about not having money in this account, and thinks we should wait until we get money in. Mayor Girard stated he was not against these projects, but does think its short-sighted.

Councilor Koloski agrees, and noted these are important to our community, but wants to wait until we have the money come in.

By consensus the City Council agrees to bring back Capital Budget when money is available.

COMMITTEE REPORTS

Manager Manale reported the Planning Board denied an extension for Bailey Ave., a driveway was approved, and there was discussion on CIP.

Councilor Hemmingway reported the Policy Committee discussed the building on class 6 roads and had a discussion on Code of Conduct.

FUTURE AGENDA ITEMS AND DIRECTIVES

Assistant Mayor Matteau asked when short term rentals were coming to Council.

Councilor Hayden shared interest in the Charter amendment, and is waiting for the City Clerk to send a letter in writing.

Councilor Koloski stated really having interest in putting it on the federal election if possible.

Councilor Koloski asked about a housing task force, but doesn't want it tied to budget.

Assistant Mayor Matteau agrees with Koloski and wants to use all tools for housing, and would like to see welfare involved.

Councilor Heminway shared interest to be on this task force.

Councilor Koloski noted in the directors' report, it indicated that car 2 at the fire station has issues and is slated for replacement. Councilor Koloski mentioned this to a local car dealer who offered to donate a piece of equipment to replace it, and wants to know the status. Manager Manale responded he had not heard from the chief.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:55 p.m., a motion was made by Councilor O'Hearne and seconded by Assistant Mayor Matteau to adjourn.

Voice vote:

Koloski – yes

Limoges - yes

Matteau – yes

Zutter – yes

Hemingway – yes

Hayden – yes

O'Hearne – yes

Girard – yes

Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council